



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HB 2375: housing; zoning; historic neighborhoods

GRESS FLOOR AMENDMENT

1. Prohibits middle housing from being developed on a site where a National Register of Historic Places structure or structure designated as historic by a municipality was demolished unless the demolition was necessary because of conditions that constitute danger to public health, safety and welfare.

M. LAVENDER

3/9/2026

(602) 926-3848

GRESS FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 2375
(Reference to GOVERNMENT Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
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>>Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~>>Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 9-462.13, Arizona Revised Statutes, is amended
3 to read:

4 9-462.13. Zoning; development; middle housing; applicability;
5 definitions

6 A. On or before January 1, 2026, a municipality with a population
7 of seventy-five thousand persons or more must authorize, by ordinance and
8 incorporate into its development regulations, zoning regulations and other
9 official controls, the development of duplexes, triplexes, fourplexes and
10 townhomes as a permitted use on both of the following:

11 1. All lots zoned for single-family residential use within one mile
12 of the municipality's central business district.

13 2. At least twenty percent of any new development of more than ten
14 contiguous acres.

1 B. The municipality may not do any of the following:

2 1. Discourage the development of middle housing through
3 requirements or actions that individually or cumulatively make
4 impracticable the permitting, siting, or construction of middle housing.

5 2. Restrict middle housing types to less than two floors.

6 3. Restrict middle housing types to a floor area ratio of less than
7 fifty percent.

8 4. Set restrictions, permitting or review processes for middle
9 housing that are more restrictive than those for single-family dwellings
10 within the same zone.

11 5. Require owner occupancy of any structures on the lot.

12 6. Require any structures to comply with a commercial building code
13 or to contain a fire sprinkler.

14 7. Require more than one off-street parking space per unit.

15 C. This section does not prohibit the governing body of a
16 municipality from allowing either of the following:

17 1. Single-family dwellings in areas zoned for single-family
18 dwellings.

19 2. Additional types of middle housing not required under this
20 section.

21 D. This section does not apply to any of the following:

22 1. Areas that are not incorporated.

23 2. Areas that lack sufficient urban services.

24 3. Areas that are not served by water and sewer services.

25 4. Areas that are not zoned for residential use.

26 5. Areas that are not incorporated and are zoned under an interim
27 zoning designation that maintains the area's potential for planned urban
28 development.

29 6. Areas covered under title 48, chapter 6, article 4.

30 7. Any land within the territory in the vicinity of a public
31 airport as defined in section 28-8486 or to the extent this section would
32 interfere with the public airport's ability to comply with the laws,
33 regulations and requirements of the United States related to applying for,
34 receiving or spending federal monies.

35 8. Any land within the territory in the vicinity of a military
36 airport as defined in section 28-8461.

37 9. AREAS THAT ARE DESIGNATED AS A DISTRICT OF HISTORICAL
38 SIGNIFICANCE PURSUANT TO SECTION 9-462.01, SUBSECTION A, PARAGRAPH 10.

39 ~~{{10. AREAS THAT ARE DESIGNATED AS HISTORIC BY THE MUNICIPALITY.~~

40 ~~11.}}~~ ~~{{10.}}~~ AREAS THAT ARE DESIGNATED AS HISTORIC ON THE
41 NATIONAL REGISTER OF HISTORIC PLACES.

42 [E. NOTWITHSTANDING ANY OTHER LAW, A MUNICIPALITY MAY ALLOW MIDDLE
43 HOUSING THAT IS DEVELOPED IN AN AREA DESIGNATED AS HISTORIC BY THE
44 MUNICIPALITY OR IN AN AREA THAT IS DESIGNATED AS HISTORIC ON THE NATIONAL
45 REGISTER OF HISTORIC PLACES ONLY IF THE MIDDLE HOUSING IS DESIGNED TO BE
46 COMPATIBLE WITH THE HISTORIC CHARACTER, SCALE AND SETTING OF THE
47 SURROUNDING AREA.

1 F. FOR MIDDLE HOUSING THAT IS DEVELOPED PURSUANT TO SUBSECTION E OF
2 THIS SECTION:

3 1. THE MUNICIPALITY MAY REQUIRE THAT THE MIDDLE HOUSING COMPLY WITH
4 THE ~~{{OBJECTIVE}}~~ HISTORIC PRESERVATION OR DESIGN STANDARDS ADOPTED BY THE
5 MUNICIPALITY OR, IF THE MUNICIPALITY HAS NOT ADOPTED HISTORIC PRESERVATION
6 OR DESIGN STANDARDS, WITH THE UNITED STATES SECRETARY OF THE INTERIOR'S
7 STANDARDS FOR THE TREATMENT OF HISTORIC PROPERTIES, INCLUDING THE
8 STANDARDS GOVERNING REHABILITATION AND NEW CONSTRUCTION.

9 2. THE MUNICIPALITY MAY REGULATE ~~{{OBJECTIVE}}~~ STANDARDS, INCLUDING
10 BUILDING HEIGHT, MASSING, LOT COVERAGE, SETBACKS, ROOF FORM, SITE LAYOUT
11 AND OVERALL BUILDING VOLUME.

12 3. MIDDLE HOUSING MAY NOT EXCEED THE MAXIMUM BUILDING HEIGHT, LOT
13 COVERAGE OR FLOOR AREA RATIO THAT IS ALLOWED BY APPLICABLE ZONING
14 REGULATIONS THAT WERE ADOPTED BEFORE JANUARY 1, 2025.

15 G. UNLESS STRICTER ZONING REGULATIONS ARE REQUIRED BY APPLICABLE
16 HISTORIC PRESERVATION STANDARDS, A MUNICIPALITY MAY REQUIRE ADMINISTRATIVE
17 SITE PLAN REVIEW SOLELY FOR THE PURPOSE OF CONFIRMING COMPLIANCE WITH
18 APPLICABLE ~~{{OBJECTIVE}}~~ STANDARDS, BUT MAY NOT REQUIRE A PUBLIC HEARING,
19 VARIANCE, CONDITIONAL USE PERMIT, SPECIAL PERMIT OR OTHER DISCRETIONARY
20 APPROVAL PROCESS FOR DEVELOPING MIDDLE HOUSING PURSUANT TO SUBSECTION E OF
21 THIS SECTION.

22 H. NOTWITHSTANDING ANY OTHER LAW, ~~{{MIDDLE HOUSING MAY NOT BE~~
23 DEVELOPED ON A SITE WHERE A STRUCTURE THAT IS LISTED ON OR IS ELIGIBLE FOR
24 DESIGNATION ON THE NATIONAL REGISTER OF HISTORIC PLACES WAS DEMOLISHED
25 WITHOUT THE REQUIRED MUNICIPAL DEMOLITION PROCESS AND REQUIRED PUBLIC
26 NOTICE. PUBLIC INPUT THAT IS CONDUCTED SOLELY FOR THE PURPOSE OF
27 DEVELOPING MIDDLE HOUSING ON A SITE PURSUANT TO THIS SUBSECTION MAY NOT BE
28 USED TO AUTHORIZE THE MIDDLE HOUSING DEVELOPMENT.}} {{MIDDLE HOUSING THAT
29 IS DEVELOPED PURSUANT TO THIS SECTION MAY NOT BE DEVELOPED ON A SITE WHERE
30 A STRUCTURE THAT IS LISTED ON THE NATIONAL REGISTER OF HISTORIC PLACES OR
31 THAT IS DESIGNATED AS HISTORIC BY THE MUNICIPALITY WAS DEMOLISHED UNLESS
32 THE DEMOLITION OF THE STRUCTURE WAS NECESSARY BECAUSE A CONDITION OR
33 CONDITIONS EXIST THAT CONSTITUTE A DANGER TO PUBLIC HEALTH, SAFETY AND
34 WELFARE, AS DEFINED BY A MUNICIPAL ORDINANCE, AND THE EXISTENCE OF THOSE
35 CONDITIONS ARE CERTIFIED BY A LICENSED ENGINEER OR BUILDING CODE
36 OFFICIAL.}}

37 ~~[F.]~~ [I.] If a municipality does not adopt the regulations
38 required by this section on or before January 1, 2026, middle housing
39 shall be allowed on all lots in the municipality zoned for single-family
40 residential use without any limitations.

41 ~~[F.]~~ [J.] This section does not change or otherwise impair the
42 terms of any development agreement that exists on September 14, 2024.

43 ~~[G.]~~ [K.] Notwithstanding subsection A of this section, a utility
44 provider impacted by a development being developed pursuant to this
45 section shall have the opportunity to review and approve the site plan for
46 the development.

47 ~~[H.]~~ [L.] For the ~~purpose~~ PURPOSES of this section:

- 1 1. "Building code":
2 (a) Means a construction code adopted by a municipality.
3 (b) Includes a model building code, commercial code, plumbing and
4 mechanical code, electric code, energy conservation code, fire code,
5 property maintenance code, neighborhood preservation code, antiblight code
6 or other similar code.
7 2. "Central business district" means an area or series of areas
8 designated by a municipality that are primarily nonindustrial and that
9 attract community activity, including the entire geographic area that the
10 municipality has officially designated as its downtown or equivalent on
11 September 14, 2024.
12 3. "Duplex" means two dwelling units on the same parcel or lot in
13 attached, detached or semidetached arrangements that are designed for
14 residential occupancy by not more than two households living independently
15 from each other.
16 4. "Floor area ratio" means the ratio of allowed square footage in
17 a middle housing project to the square footage of the parcel on which it
18 is built.
19 5. "Fourplex" means four dwelling units on the same parcel or lot
20 in attached, detached or semidetached arrangements that are designed for
21 residential occupancy by not more than four households living
22 independently from each other.
23 6. "Household" means either:
24 (a) A single person living or residing in a dwelling or place of
25 residence.
26 (b) Two or more persons living together or residing in the same
27 dwelling or place of residence.
28 7. "Middle housing":
29 (a) Means buildings that are compatible in scale, form and
30 character with single-family houses and that contain two or more attached,
31 detached, stacked or clustered homes.
32 (b) Includes duplexes, triplexes, fourplexes and townhouses.
33 8. "Permitted use" means the ability for a development to be
34 approved without requiring a public hearing, variance, conditional use
35 permit, special permit or special exception, other than a discretionary
36 zoning action to ~~determination~~ DETERMINE that a site plan conforms with
37 applicable zoning regulations.
38 9. "Townhouses" means dwelling units that are constructed in a row
39 of two or more attached units in which each dwelling unit shares at least
40 one common wall with an adjacent unit and that are accessed by separate
41 outdoor entrances.
42 10. "Triplex" means three dwelling units on the same parcel or lot
43 in attached, detached or semidetached arrangements that are designed for
44 residential occupancy by not more than three households living
45 independently from each other.
46 <<Sec. 2. Emergency

1 [This act is an emergency measure that is necessary to preserve the
2 public peace, health or safety and is operative immediately as provided by
3 law.]>>

4 Enroll and engross to conform

5 Amend title to conform

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